

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: January 16, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

SIXTH AMENDED SCHEDULING ORDER

On January 5, 2026, I held a conference with the parties to resolve a discovery dispute arising out of Respondents' allegation that Complainant's corporate witness was not prepared for his Rule 143(b)(6) deposition. That rule provides:

In its notice or subpoena, a party may name as the deponent a public or private corporation, a partnership, and association, a governmental agency, or other entity and must describe the matter for examination. The named organization must then designate one or more officers, directors, or managing representatives, or designate other persons who consent to testify on its behalf; and it may set out the matters on which each person designated will testify.

46 C.F.R. § 502.143(b)(6). The Commission Rule is substantially similar to FRCP 30(b)(6). Federal courts applying the rule have stated that a Rule 30(b)(6) witness is different from a mere employee because, unlike an individual witness, the Rule 30(b)(6) witness represents the knowledge of the corporation, binds the corporation, and is obligated to become educated to the extent possible about the identified topics, although perfection is not expected. *Edwards v. Scripps Media, Inc.*, 331 F.R.D. 116 (E.D. Mich. 2019). Such preparation may necessitate reviewing the deposition testimony of prior fact witnesses as well as documents and exhibits – the designated witness or witnesses must be capable of providing testimony on the noticed topics regardless of a lack of personal knowledge as long as the information is reasonably available to

the corporation. *Memory Integrity, LLC v. Intel Corp.*, 308 F.R.D. 656, 661 (D. Or. 2015). In a situation where the corporation no longer employs individuals with relevant knowledge, as is the case here, the corporation is not relieved of the obligation to prepare its Rule 30(b)(6) representative to the extent information is reasonably available from documents, past employees, or other sources. *U.S. v. Taylor*, 166 F.R.D. 356, 361 (M.D.N.C. 1996).

The parties submitted memoranda in support of their positions. Respondents claimed that this was not a discovery issue, but an evidentiary one, and sought an order restricting Complainant from introducing any evidence “to supplement the deposition testimony” of their corporate witness. Resp.’s Mem., Dkt. 59, p. 2. Complainant maintained that its witness was adequately prepared, and that the questions Respondents highlighted were so detailed as to be ill suited to a corporate-designee deposition. Compl.’s Mem., Dkt. 60, p. 4.

I reviewed the transcript of Complainant’s Rule 143(b)(6) deponent and, despite Complainant’s argument that he was adequately prepared, did not find that to be the case. While Complainant is correct that a corporate designee need not have perfect and complete knowledge, in this deposition, the deponent answered “I don’t know” to most questions in most categories outlined in the deposition notice, such that there was effectively no deposition at all.

But that does not mean that Respondent’s requested relief is appropriate. The designee’s testimony “binds” the corporation in the sense that it is admissible against the party, can be used for impeachment purposes, and cannot be retracted by, for example, submitting a contradictory affidavit in response to a summary judgment motion. *State Farm Automobile Ins. Co. v. New Horizon, Inc.*, 250 F.R.D. 203, 212 (E.D. Pa. 2008). It is not binding in the sense that it is a judicial admission – a statement that conclusively establishes a fact and estops a party from controverting the statement with other evidence. *Id.* (citing 8A Charles Alan Wright, Arthur R. Miller & Richard L. Marcus, Federal Practice and Procedure § 2103 (Supp. 2007)). Even in the cases Respondent cited to support its request, the courts ordered the retaking of the corporate deposition, not a limitation on the corporation’s submission of evidence. *Fago v. M&T Mort. Corp.*, 235 F.R.D. 11, 24 (D.D.C. 2006); *Fraser Yachts Fla., Inc. v. Milne*, No. 05-21168-CIV-JORDAN, 2007 WL 1113251, at *3 (S.D.Fla. Apr. 13, 2007); *Ierardi v. Lorillard*, No. 90-7049, 1991 WL 158911, at *4 (E.D.Pa. 1991).

And that is the appropriate remedy here. At the conference, I asked Respondents’ counsel if they wanted to retake Complainant’s corporate deposition, and they asked to consult with their client. I instructed the parties to submit a joint status report to include time to take the deposition, if needed, as well as a schedule for further proceedings in light of the discussion which revealed there may be a need to take testimony in this case, rather than submitting on the briefs. Respondents have decided to retake Complainant’s deposition, and propose a summary-judgment briefing schedule. Joint Status Report, Dkt. 61. Complainant proposes proceeding to full briefing following the close of discovery, without summary judgment motions.

Neither multiple rounds of briefing (summary judgment), nor briefing without a better sense of the genuine material disputes in the case, is the most efficient way to proceed. Instead, the parties will follow the prehearing procedures in Rules 209 and 210, including submission of a prehearing statement, ***with particular attention to the submission of a joint statement of material facts***. After reviewing the prehearing statement or holding the prehearing conference, if

it appears that there are no issues of material fact that would make a hearing necessary, I will set a briefing schedule. Otherwise, the hearing date and location, as well as the scope of the hearing, will be set at the prehearing conference. Counsel who will conduct the hearing must attend the prehearing conference, and must have authority to enter into stipulations, admissions, and agreements regarding all matters that the participants may reasonably anticipate may be discussed.

Prehearing statements must comply fully with 46 C.F.R. § 502.210. Counsel who will conduct the hearing must meet no later than the date set forth below for the purpose of discussing the topics set forth in 46 C.F.R. § 502.210(b) and to prepare, to the extent possible, a Joint Prehearing Statement. If there are elements of the statement to which the parties do not agree, the parties should describe their respective positions in the jointly prepared document.

At this meeting, the parties must exchange all documentary exhibits they may offer at the hearing. The parties must also designate depositions, or portions of depositions, that they plan to offer into evidence in the Joint Prehearing Statement. See 46 C.F.R. § 502.149. Objections, if any, by a party to the exhibits submitted or depositions designated by any other party must be made at the time of submission of the Joint Prehearing Statement. A party raising an objection to an exhibit or deposition must attach a copy of the exhibit or portion of the deposition transcript to which the objection is made. Each party's brief statement of applicable law (46 C.F.R. § 502.210 (b)(5)) must not exceed five pages.

The rules governing Confidential Material set forth in the Initial Order are applicable to hearing exhibits. Requests for confidential treatment of hearing exhibits must be made by motion in accordance with the Initial Order, and the motion must be submitted with the Joint Prehearing Statement. If any party seeks confidential treatment of anticipated testimony, the motion for confidential treatment must address that testimony as well. 46 C.F.R. §§ 502.5, 502.208.

The parties are **ORDERED** to follow this amended schedule:

Deadline to depose Complainant's corporate witness	January 23, 2026
Complainant's deadline to submit supplemental expert report with respect to corporate witness testimony	February 6, 2026
Respondent's deadline to submit supplemental expert report with respect to corporate witness testimony	February 20, 2026
Expert deposition deadline	March 13, 2026
Meeting to discuss Joint Prehearing Statement, including joint statement of material facts, must be held by this date; hearing exhibits must be exchanged	March 27, 2026
Joint Prehearing Statement, objections to exhibits, and motions for confidential treatment are due	April 17, 2026

Prehearing conference to be held at 800 North Capitol Street, NW,
Washington, DC at 10:30 AM

May 1, 2026

SO ORDERED.

ALEX
CHINTELLA



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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge